

(30) days of notice of entry of this order, Defendant shall file and serve a declaration signed under penalty of perjury setting forth any and all reasonable expenses, including attorney's fees or other costs, incurred by Defendant as a result of the above discovery misconduct (the "Supplemental Declaration regarding Monetary Sanctions"). Such submittal shall include any supporting billing statements.

- b. **Contents and Length of Supplemental Filing.** Defendant's Supplemental Declaration regarding Monetary Sanctions shall not exceed 5 pages, excluding any evidentiary attachments such as supporting attorney billing statements or other documentation of reasonable expenses. Any redaction of billing statements regarding privilege issues should be as minimal as possible in order to facilitate the Court's review and consideration of the scope of legal services provided.
- c. **Meet and Confer.** Within fourteen (14) days after service of Defendant's Supplemental Declaration regarding Discovery Monetary Sanctions, the parties shall meet and confer, in good faith, to attempt to resolve the issue of the Monetary Sanctions.
- d. **Moving Party's Response.** If not resolved by the meet and confer process, within thirty (30) days after service of the Defendant's Supplemental Declaration regarding Discovery Monetary Sanctions, Plaintiff shall file and serve any further declaration and/or other briefing paper regarding the Monetary Sanctions sought.
- e. **No Reply.** No further reply papers shall be submitted regarding the issue of the Monetary Sanctions.
- f. **Further Hearing.** The issue of Monetary Sanctions shall be set for further hearing on **November 16, 2026, 9:00 am, in Department 34** of the Court. The parties are admonished to consult any tentative ruling published by the Court in advance of the hearing and to abide by the tentative ruling procedures. See Local Rule 3.43. The Court reserves jurisdiction regarding the determination and imposition of the Monetary Sanctions.

3. The Court shall issue the order after hearing.

19. 9:01 AM CASE NUMBER: C25-02355

CASE NAME: HEATHER SILVIA VS. KAISER FOUNDATION HOSPITALS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS, SET 1**

FILED BY: KAISER FOUNDATION HOSPITALS

TENTATIVE RULING:

Defendants Kaiser Foundation Hospitals and Kaiser Foundation Health Plan, Inc. ("Defendants") filed a motion to compel further responses to requests for production of documents propounded upon plaintiff Heather Silva ("Plaintiff") and for monetary sanctions on April 14, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on September 21, 2026.

Background

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. Defendants' Requests for Production of Documents, Set One (the "**RPDs**") Nos. 52 and 53.

Defendants seek an order compelling Plaintiff to “execute and produce (a) a fully completed and signed HIPAA Authorization for Release of Medical, Psychiatric, and/or Psychological Records, and (b) a fully completed and signed Authorization to Release Disability and Unemployment Claim Records.”

A Separate Statement in support of the motion was filed on April 14, 2026.

Opposition papers were filed on September 8, 2026, including an opposition declaration.

A reply was filed September 14, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statement, the opposition, the reply and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Requests and responses at issue:

RPDs

RPD No. 52.

This RPD seeks production of “For the health care practitioners identified in Special Interrogatory No. 8, a fully executed (as used in these interrogatories, “executed” means to fill in the name and address of the health care provider(s) at top of the authorization, and to date and sign the authorization) HIPAA Authorization for Release of Medical, Psychiatric, and/or Psychological Records, by YOU for all medical and associated billing records for visits and treatments received, including but not limited to mental health treatment, from August 11, 2023, to the present. A copy of the authorization is attached as Exhibit A.”

RPD No. 53.

This RPD seeks production of “A fully completed and signed Authorization to Release Disability and Unemployment Claim Records by YOU for all records pertaining to any claim for disability and unemployment insurance benefits made by YOU from August 11, 2023, to the present. A copy of the authorization is attached as Exhibit B.”

The attached Exhibits A and B are partially completed authorization and release forms.

Apparently, Defendants seek to have the Plaintiff complete, sign and return these forms through the mechanism of a document production request.

Plaintiff has objected.

While Defendant cite caselaw for the proposition that “Courts regularly compel authorizations to release medical records in analogous circumstances,” the cited case does not suggest that the appropriate mechanism is a document inspection demand.

The only California state law authority cited by Defendants for this proposition is *Miranda v. 21st Century Ins. Co.* See *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 917. The court in that case ruled that the trial court had jurisdiction to rule on the discovery dispute at issue, including making an order compelling plaintiff to sign authorizations for release of her medical records. See *Id.* at 926 and 918. Nothing in this case addressed whether a document inspection demand purporting to direct the responding party to complete and sign a release form is somehow proper.

To the extent the case mentioned, in *dicta*, the basis for the underlying compliance order, it is evident that the order was based on certain specific provisions of the Insurance Code and did not involve compelling a response to document inspection demand. See *id.* at 918 (“The “compliance” defendant requested was an order compelling plaintiff to sign the authorizations for release of her medical records from Kaiser Pasadena and Kaiser Hollywood-Sunset. Defendant asserted it was entitled to seek discovery orders from the court pursuant to section 11580.2, subdivisions (f) and (p) of the Insurance Code.”).

There is simply no obligation to create or generate documents to comply with a request for inspection of documents. A party cannot be compelled by a document inspection demand to produce documents that do not exist. See Code Civ. Proc. § 2031.010 (documents subject to inspection are those “**in the possession, custody, or control**” of any party to the action) (emphasis added). A non-existent document that the propounding party wants the responding party to create cannot be said to be in that responding party’s possession, custody, or control before its creation.

The Court expresses no opinion on whether there may be another applicable mechanism to compel such authorization and/or release of relevant medical records. But it is certainly not via a document inspection demand.

Accordingly, the motion is **DENIED** as to both RPD No. 52 and 53.

Sanctions

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2031.300(c) (“...the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is **DENIED**.
2. Any and all sanctions requests are **DENIED**.
3. The prevailing party shall prepare the order after hearing in accordance with Rule 3.1312 of the California Rules of Court (CRC).